



Appeal Decision

by C Butcher BSc MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6004909

Land at Vicarage Hill, St Day, TR16 5PJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr M Kemp against the decision of Cornwall Council.
 - The application Ref is PA25/07349.
 - The development proposed is Permission in Principle for 1 to 2 new homes.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has two stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second ('technical details consent stage') is when the detailed development proposals are assessed. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted¹. All other matters are considered as part of a subsequent Technical Details Consent application if permission in principle is granted. I have determined the appeal accordingly.
4. An updated version of the National Planning Policy Framework (the Framework) was published on 17th August 2026. In the interests of fairness, I provided the main parties with an opportunity to provide comments on the new Framework as part of the appeal process. I have taken account of those comments when making my decision.

Main Issue

5. The main issue is the effect of the proposed development upon the Outstanding Universal Value of the Cornwall and West Devon Mining Landscape World Heritage Site.

Reasons

6. Matters such as the design, layout and scale of the proposed development fall outside of the scope of the permission in principle stage. However, the effect of additional built form on the appeal site can still be considered in general terms in

¹ PPG Paragraph: 012 Reference ID: 58-012-20180615

order to determine whether or not the site is a suitable location. In this instance, the key consideration is the effect of the proposal on the World Heritage Site (WHS) of which the site forms part. The significance of the WHS, in so far as it is relevant to this appeal, is derived from the importance of mineworkers' smallholdings and the way in which they are representative of the importance of the mining industry in the area. In essence, they help to tell a story about how St Day and the wider area evolved over many decades.

7. As part of their consultation response, the Cornish Mining WHS Office has provided a lengthy and detailed analysis of the history of the site and the wider area in which it is located. They have set out that the field within which the appeal site forms part was known to have been owned by Collan and James Harvey who sold materials to the mining industry, while Collan was also a shareholder in a lucrative copper mine. Moreover, they state that the brothers leased in excess of 30 plan plots in the area which included dwellings, outhouses and field plots.
8. The WHS office has concluded that these plots were most likely worked by mineworkers given the extent and prominence of the mining industry in the immediate area. Indeed, it notes that cottages and smallholdings in Vicarage Hill sat right amongst the mine workings.
9. The appellant has helpfully provided a copy of an 1838 Tithe survey as part of their appeal statement (Appendix F). The boundaries of the landholding in which the appeal site is located are very clear. Moreover, when one visits the appeal site, or looks at aerial photography, it is obvious that the historic boundaries of that landholding are still intact. Indeed, housing to the east was clearly built on an adjacent landholding. The view of the WHS office is that the appeal site at least forms part of a mineworker's smallholding.
10. I note that the appellant has stated that there is no definitive evidence that the smallholding was utilised by mineworkers, and that it could equally have been worked by people in other industries. The provided comparison between smallholdings and commercial fields, particularly in terms of the sizes of plots, is certainly interesting, and I have also had regard to the descriptions of mineworkers' smallholdings that have been provided, and the points raised about the Harvey brothers being occupiers or leaseholders themselves.
11. Clearly, when dealing with historical records, there can sometimes be an absence of certainty. However, I do find the WHS office's detailed submissions to be quite compelling and given the extent to which St Day was linked to the mining industry, including the area around Vicarage Hill, it seems very likely to me that the smallholding would have been worked by mineworkers. Moreover, the lack of an associated dwelling on or near the site does not reduce the historic value or importance of the smallholding. As such, having regard to Policy HE8 of the Framework, it seems to me that the site does contribute to the significance of the WHS.
12. I acknowledge that the appeal site itself is currently occupied by some buildings which are perhaps in a poor state of repair. Nevertheless, the extent of the wider landholding, including its boundaries, can still be readily appreciated. Details of the appearance of the proposed homes in this instance are obviously unknown at this stage. However, it is clear that the provision of up to two dwellings on the site, with the associated hardstanding, and the inevitable domestic paraphernalia, would

result in the site becoming visually separated from the wider landholding. In addition, the domestic appearance of the site would greatly erode the historic value of the land to a much greater extent than is currently the case. As a result, the contribution of the appeal site to the significance of the wider WHS would also be lost.

13. Policy HE4(2) of the Framework states that any harm to the significance of a designated heritage asset should have a clear and convincing justification, while Policy HE6(1) opines that substantial weight should be given to the asset's conservation. In this instance, having regard to Policy HE5(2) of the Framework, the proposal would result in 'harm', albeit at the lower end of the scale given the modest nature of the proposal. In such circumstances, the Framework requires that the public benefits of the scheme be weighed against the identified harm.
14. The proposal would result in the provision of up to two new dwellings on previously developed land which would help meet need, while also providing economic benefits during the construction phase and post occupation. However, given the modest scale of the proposal, the benefits would be limited. As a result, given the weight that must be afforded to any harm to a designated heritage asset, I am of the view that the harm in this instance would clearly outweigh the public benefits.
15. The proposal would result in harm to the Outstanding Universal Value of the WHS and would therefore not be in a suitable location. As such, it would conflict with Policies 1, 2, 12, 21 and 24 of the Cornwall Local Plan Strategic Policies 2010 – 2030, as well as Policy C1 of the Climate Emergency Development Plan Document, 2023. Taken together, the relevant aspects of these policies seek to ensure that new development is sustainable, including by being well designed and by preserving the significance of designated heritage assets. There would also be conflict with the Cornwall and West Devon Mining Landscape WHS Management Plan 2020 – 2025 and the Cornwall Design Guide, the relevant aspects of which have similar aims.

Other Matters

16. The site is within the zone of influence of both the Penhale Dunes and the Fal and Helford Special Areas of Conservation and I note that mitigation has been provided. However, as I am dismissing the appeal, an appropriate assessment is unnecessary.

Conclusion

17. The proposed development would result in harm to the WHS and would therefore conflict with the development plan when considered as a whole.
18. In terms of benefits, the proposal would result in the provision of up to two new dwellings on previously developed land which would help meet need, while also providing economic benefits during the construction phase and post occupation. However, given the small scale nature of the proposal, these benefits would be limited.
19. The site is well related to existing homes, and while it is situated outside of the main urban area of St Day, I am of the view that it should be regarded as being within a settlement. Policy S4(1) of the Framework notes that development proposals within settlements should be approved unless the benefits of doing so

would be substantially outweighed by any adverse effects, when assessed against national decision-making policies. I have also had regard to Policy HO7 which notes that substantial weight should be given to the benefits of providing homes that will help meet the needs of the community. Given the shortfall of housing land supply in the area, this clause could be said to be triggered.

20. However, I give little weight to Policy L2 of the Framework which concerns making better use of vacant or underutilised land. Given the harm I have identified to the WHS, I cannot conclude that the proposal represents a 'better use' of the land.
21. In this instance, harm to the WHS is a serious matter that must attract very significant weight. I therefore find that the harm would substantially outweigh the limited benefits in this case, even when applying substantial weight in relation to Policy HO7 of the Framework. Accordingly, there are no material considerations, either individually or in combination, that outweigh the identified harm and associated development plan conflict. The appeal is therefore dismissed.

C Butcher

INSPECTOR